

Calendar Line # 3
Case Name Zhao Zheng vs Ming Lin
Case No. 23CV416606
Motion for Terminating and Monetary Sanctions I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a partition of single-family residence located at 1563 Mackey Avenue, San Jose, California (“Subject Property”) that is co-owned by Plaintiff/Cross Defendant Zhao Hui Zheng (“Zheng”) and Defendant/Cross Complainant Ming Zhang Lin (“Lin”). Plaintiff filed her Complaint on May 23, 2023 alleging three causes of actions: (1) partition; (2) declaratory relief; and (3) accounting. Defendant Zhang filed an Answer on July 20, 2023. On July 28, 2025, Defendant filed a Cross-Complaint alleging fraud, perjury and misrepresentation to the court, and constructive trust. Plaintiff Zheng filed a demurrer to the cross complaint that was sustained on May 19, 2026. B. RELEVANT PROCEDURAL BACKGROUND Plaintiff propounded initial discovery on Defendant including: Form Interrogatory (“FROG”), Special Interrogatory (SPRG); Request for Production of Documents (“RFPD”) on September 3, 2024. (Declaration of Woody Wu (“Wu Decl.”) ¶ 2; Exhibit A). Responses were due by October 8, 2024. (<i>Id.</i>, ¶ 3). Defense did not seek an extension and did not provide responses despite Plaintiff’s counsels attempts to meet and confer before filing a motion to compel. (<i>Id.</i>, ¶¶ 3-4). Subsequently, Plaintiff filed a motion to compel and request for sanctions. (<i>Id.</i>, ¶ 5). On April 23, 2025, the Honorable Shella Deen heard the unopposed motion and granted the motion, ordered Defendant to serve verified code-complaint responses and responsive documents and awarded Plaintiff sanctions in the amount of \$1,410.00, which Defendant was ordered to pay within 45 days of a formal order. The formal order was executed by Judge Deen on May 1, 2025. (<i>Id.</i>, ¶¶ 5-8; Exhibit B). From April 2025 to the January 2026, Plaintiff attempted to meet and confer with Defendant regarding the order, and potential need to file a motion for terminating and monetary sanctions. (<i>Id.</i>, ¶¶ 8-11). C. PRESENT MOTION Before the court is Plaintiff/Cross Defendant Zhao Hui Zheng (“Zheng”)’s motion for sanctions that was filed on January 6, 2026. The motion was accompanied by a proof of service indicating electronic on Defendant/Cross Complainant Ming Zhang Lin (“Lin”) on that same day. Plaintiff seeks terminating sanctions and seeks an order striking Defendant’s Answer and Cross-Complaint and monetary sanctions in the amount of \$3,260.00 against Defendant Lin for failure to comply with the May 1, 2025 Court Order. Plaintiff’s motion is based on Defendant’s failure to comply with discovery process and court orders. (Plaintiff’s motion, p. 2-3). Defendant Lin filed an opposition on August 31, 2026. On September 4, 2026, Plaintiff filed a reply brief. The Court has carefully reviewed the following: Plaintiff Zheng’s notice of motion, memorandum of points and authorities (“MPA”), Declaration of Woody Wu and attached Exhibits A-C (totaling 21 pages); Opposition filed by Defendant Lin (totaling 8 pages); Declaration of Ming Zhang Lin in support of the Opposition and attached Exhibits A–D (totaling 30 pages); Plaintiff Zheng’s reply brief (totaling 5 pages); Declaration of Woody Wu in support of the reply brief and attached Exhibit A (totaling 30 pages); proofs of services; and the pleadings. // //

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)). “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion [to deem admitted the truth of the matters specified in the requests for admission].” (Code Civ. Proc., § 2033.280, subd. (c)).

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. [Citation.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169). If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Doppes, supra*, 174 Cal.App.4th at p. 992). “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed what is required to protect the interests of the party entitled to but denied discovery.’” (*Id.*).

“But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

Pursuant to Code of Civil Procedure section 2023.010, “the court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. §§ 2023.010 and 2031.300).

III. ANALYSIS

Here, Plaintiff Zheng seeks terminating and monetary sanctions against Defendant Zheng. Plaintiff asserts that terminating sanctions are necessary in this case as Defendant violates court order and willfully fails to comply with discovery. (Plaintiff’s Motion, p. 5-6). Plaintiff asserts that Defendant has a history of violating discovery and court orders throughout this case, including the May 1, 2025 discovery and sanctions order issued by Judge Deen. (*Id.*). Plaintiff argues that she is prejudiced by Defendant’s misuse and refusal to comply with discovery and orders as Plaintiff cannot test Defendant’s denials or prepare for trial on any issues concerning the allocation of property-related financial obligation. (*Id.*, at p. 7). Plaintiff argues monetary sanctions are also appropriate in this matter as Defendant’s failure to comply has resulted in the need to file motions, which have been expensive and burdensome. (*Id.*, at p. 8). Plaintiff’s counsel seeks \$3,260.00 in fees and costs in sanctions against Defendant. The amount is comprised of eight hours of work at the hourly rate of \$400.00 per hour and \$60.00 in filing fees. (Wood Decl., ¶ 14).

The Court notes that on March 24, 2026, the court heard Defendant’s motion to set aside discovery sanctions that were issued by the Honorable Shella Deen following the above mentioned April 23, 2025 motion to compel further response to FROG, SPROG, RFPD, and sanctions and the May 1, 2025 motion to deem requests for admissions

deem admitted. Both motions were unopposed and granted. Judge Deen awarded sanctions in each motion in the amount of \$1,410.00 for a total of \$3,260.00 total. After the hearing, the Court denied the motion. Defendant admits that his prior responses to discovery were deficient and untimely. (Opposition, ¶ 5). Defendant argues that he has complied with the order by providing supplemental responses, paid of \$1,410.00 of sanctions on August 30, 2026, and is willing to produce supplemental specific responses with further clarification. (Wu Decl. ¶ 2, 6-7; Exhibit B). Defendant argues that terminating sanctions are drastic and sanctions must be incremental. (*Id.*, p. 5-6; citing *Doppes v. Bentley Motors, Inc.*, *supra*, 174 Cal.App.4th at 992). Defendant argues that terminating sanctions would eliminate his entire defense. (*Id.*). Defendant also emphasizes his pro per status and age of the records as grounds for the delay. (*Id.*). Defense seeks an order denying terminating sanctions, and monetary sanctions, or in the alternative, a reduction in monetary sanctions. (*Id.*, p. 7).

The Court as previously addressed with Defendant Lin, notes that self-represented litigants are entitled to the same, but no greater, consideration than other litigants and attorneys. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444). Self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; *see also Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.”]). The discovery rules under Code of Civil Procedure and Rules of Court apply equally to Plaintiff and Defendant Lin.

Plaintiff argues that Defendant waived nearly eight months after this motion was filed and sixteen days before the hearing to serve supplemental responses. (Reply, p. 1). Plaintiff’s counsel asserts that Defendant served deficient unverified responses. (*Id.*). However, it is undisputed that verifications were served on September 1, 2026. (*Id.*). Plaintiff’s argue that Defendant’s lack of diligence, conscious or intentional failure to act, provides grounds for sanctions. (*Id.*, at p. 2, citing *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 787-788). Aside from late verifications, Plaintiff argues that Defendant continues to lodge evasive and nonresponsive answers, and specifically points to defendant’s responses to the following: RFPD No. 3; FROG Nos. 2.3 and 9.1; SPROG Nos. 5, 11, 13, and 15. (Reply, at p. 4-5). As to the payment of prior sanctions, Plaintiff asserts that the basis of the motion is not just based on the unpaid sanctions, but the fourteen month delay due to Defendant’s noncompliance. (*Id.*, at p. 5). Thus, Plaintiff seeks evidentiary sanctions to strike Defendant’s Answer and Cross Complaint, award monetary sanctions in the amount of \$3,260.00, or in the alternative, preclude Defendant from offering any evidence or motion at trial regarding “. . . contributions, payments, expenses, repairs, improvements, taxes, or insurance premiums not produced by a date certain, together with an order compelling full production and answers stating actual amounts. . . ” (*Id.*).

The Court finds that Plaintiff has met its burden on showing that Defendant Lin has not complied with court orders to provide verified and code compliant responses and sanctions as noted above. Plaintiff has demonstrated that fourteen months has lapsed and resulted in prejudice in evaluating Defendant’s defenses and preparing for trial. The Court notes that there have been at least two separate discovery and sanctions granted and undue delay. However, the Defendant has submitted verified further responses to the discovery, *prior* to this hearing, and payment of one of the sanctions awarded, which demonstrates an effort to comply. The court notes that discovery statutes evidence an incremental approach regarding evidentiary and monetary sanctions. (*Doppes v. Bentley Motors, Inc.*, *supra*, 174 Cal.App.4th at 992). The Court takes into consideration the totality of the circumstances and attempts to curb noncompliance while attempting to impose less severe sanctions to produce compliance. (*Mileikowsky*, *supra*, Cal.App.4th at 279–280).

Accordingly, at this time the Court DENIES the request to impose terminating or evidentiary sanctions. However, the Court GRANTS monetary award sanctions. The Court will award 6 hours of work at the requested hourly rate of

\$400.00 per hour, for a total of \$2,400.00 Defendant Lin is admonished to comply with Court orders and discovery process, further refusal to comply with either may result in evidentiary or terminating sanctions.

IV. CONCLUSION

Based on the foregoing, the motion for terminating or evidentiary sanctions are DENIED.

The motion for monetary sanctions is GRANTED. Defendant is ordered to pay the Plaintiff \$2,400.00 in monetary sanctions within thirty (30) days of this hearing.

The Court will prepare the formal Order.

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Calendar Lines # 7-8
Case Name Jose Javier Luna-Robles vs Elizabeth Alejo
Case No. 24CV442503
Demurrer (Line # 7) & Motion to Strike (Line # 8) Before the court is a (1) demurrer by Legacy Real Estate and Associates and Saundra Allman to second amended cross-complaint; and (2) Legacy Real Estate and Associates and Saundra Allman’s motion to strike portions of second amended cross-complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> A. COMPLAINT In June of 2021, plaintiff Jose Javier Luna-Robles (“Plaintiff”) owned a residence located at 532 Monroe Street in Santa Clara (“Monroe Property”). (Complaint, ¶9). Plaintiff contacted defendant Elizabeth Alejo (“Alejo”) to refinance the existing loan secured by the Monroe Property. (<i>Id.</i>) Plaintiff wanted to lower his interest rate and to cash out some equity in order to purchase a second residential property to conduct his landscaping service business. (<i>Id.</i>). Plaintiff believed he could purchase another residence, rent the residence to one of his employees, and utilize the back yard of this residence for the operation of his landscaping service business. (<i>Id.</i>). Defendant Alejo advised Plaintiff that purchasing another residential property would be too expensive but told him she knew of a lot that was for sale. (Complaint, ¶10). Plaintiff met with defendant Alejo and the listing agent, Saundra Allman (“Allman”), of the lot for sale at 0 Dobbin Drive in San Jose (“Subject Property”). (<i>Id.</i>). During this visit, defendant Alejo translated all communications with Allman for Plaintiff whose primary language is Spanish although he does speak and understand some English. (<i>Id.</i>). This meeting occurred before Plaintiff made an offer to purchase the Subject Property on June 12, 2021. (<i>Id.</i>). At the time of this meeting, Plaintiff informed defendant Alejo of his interest in purchasing property to use in conducting his landscaping service business. (Complaint, ¶11). Plaintiff informed defendant Alejo that he needed property that would allow him, at a minimum, to store, operate, and access multiple vehicles, trailers, storage containers, and other machinery and equipment. (<i>Id.</i>). Prior to Plaintiff making an offer to purchase the Subject Property, defendant Alejo represented to Plaintiff that he could conduct his landscape servicing business on the Subject Property and that a permit from the City of San Jose was not needed for him to do so. (Complaint, ¶12). Defendant Alejo did not advise Plaintiff to investigate whether the Subject Property’s zoning would allow him to operate his landscape servicing business. (<i>Id.</i>). Defendant Alejo did not, at any time, conduct any investigation of the Subject Property or of Plaintiff’s anticipated use of the Subject Property. (<i>Id.</i>). Plaintiff understood defendant Alejo was representing him in the purchase of the Subject Property, not merely the refinancing of his Monroe Property. (Complaint, ¶13). All oral communications Plaintiff had with respect to the purchase of the Subject Property were with defendant Alejo. (<i>Id.</i>) The purchase agreement identifies defendants Firestone Financial Group (“FFG”) and Carrollson Harry Firestone Jr. (“Firestone”) as Plaintiff’s broker in the purchase of the Subject Property. (<i>Id.</i>). Defendant Alejo held her license to conduct mortgage loan originations with defendant FFG. (Complaint, ¶2). Defendant Alejo operated her mortgage brokerage business under the license issued to defendant Firestone. (Complaint, ¶4). Escrow on the purchase of the Subject Property closed on July 22, 2021. (Complaint, ¶15). At or around the same time, refinance of the Monroe Property was completed. (<i>Id.</i>).